

IN THE UNITED STATES DISTRICT COURT
FOR THE SOUTHERN DISTRICT OF NEW YORK

SEAN VINCENT and LORENZO SERNA,

14 CV

7744
INDEX NO.

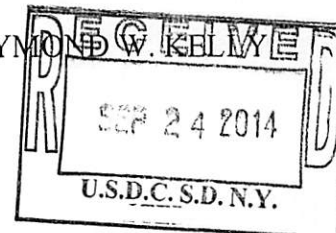
PLAINTIFFS,

COMPLAINT

vs.

DEPUTY INSPECTOR EDWARD WINSKI, JUDGE BRODERICK
NEW YORK CITY POLICE CAPTAIN THOMAS TRAYNOR,
THE CITY OF NEW YORK, a municipal entity,
NEW YORK CITY POLICE OFFICER LISA WARING (SHIELD "2987")
NEW YORK CITY POLICE JOHN MCNAMARA (SHIELD "22960"),
NEW YORK CITY POLICE OFFICER EDWARD BLANCO (SHIELD "11035"),
NEW YORK CITY POLICE OFFICER VERNELLY (SHIELD "0136"),
NEW YORK CITY POLICE OFFICER WILLIAM CURLEY (SHIELD "01500"),
NEW YORK CITY POLICE OFFICER WILLIAM GRODNICK (SHIELD "04729"),
NEW YORK CITY POLICE OFFICER THOMAS MANNING (SHIELD "10032"),
NEW YORK CITY POLICE OFFICER CARBAJAL (SHIELD "945551"),
NEW YORK CITY POLICE OFFICER PAUL RERES (SHIELD "19924"),
NEW YORK CITY POLICE OFFICERS "JOHN DOES 1-10",
NEW YORK CITY SUPERVISING POLICE OFFICERS "RICHARD ROES 1-10",
(FORMER) MAYOR MICHAEL R. BLOOMBERG, and
(FORMER) NEW YORK CITY POLICE COMMISSIONER RAYMOND W. KELLY

DEFENDANTS.



Plaintiffs, LORENZO SERNA and SEAN VINCENT, by their attorneys, STECKLOW COHEN & THOMPSON, complaining of the defendants, respectfully alleges as follows:

I. PRELIMINARY STATEMENT

1. Plaintiffs brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of their civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

2. The Plaintiffs believe in the power of peaceable assembly to affect political and social change. Acting on this generalized belief, the Plaintiffs each individually became involved with the Occupy Wall Street ("OWS," "Occupy") movement. OWS is a movement that, *inter alia*, protests the institutionalized inequality in this country that funnels almost all the nation's political power, wealth and resources

to a tiny fraction of people and their corporations, and denies the vast majority of ordinary Americans their fair share.

3. Plaintiffs were each active in facilitating and/or participating in the activities of OWS. Mr. Serna was part of the OWS live-stream team; a team within OWS that uses video cameras and computers to document the movement's activities, and to broadcast those activities, via the internet, in real time throughout the country and the world. Mr. Vincent was an active facilitator of marches and unofficial spokesperson for OWS.

4. The Defendant POLICE OFFICERS arrested Plaintiff SEAN VINCENT multiple times, including:

- a. September 24, 2011 at or around 14th Street and Broadway near Union Square in Manhattan; and
- b. October 1, 2011, at or around the Brooklyn Bridge between Manhattan and Brooklyn; and
- c. October 15, 2011, in or around 37th Street and 6th Avenue; and
- d. November 8, 2011, in and around Zuccoti Park; and
- e. November 27, 2011 in and around Zuccoti Park.

5. On each occasion, SEAN VINCENT was at all times lawfully exercising his First Amendment protected rights to free speech and assembly. Nonetheless, the Defendant POLICE OFFICERS arrested him on five separate occasions in less than seventy (70) days.

6. The Defendant POLICE OFFICERS arrested Plaintiff LORENZO SERNA multiple times, including:

- a. September 1, 2011 in front of the statue of George Washington at Federal Hall, in and around 26 Wall Street, New York City; and
- b. October 1, 2011, at or around the Brooklyn Bridge between Manhattan and Brooklyn; and
- c. November 15, 2011, in or around Zuccoti Park; and
- d. December 12, 2011, in or around the Winter Garden in downtown Manhattan.

7. On each occasion, Mr. Serna was at all times lawfully exercising his First Amendment protected rights to free speech and assembly. Nonetheless, the Defendant POLICE OFFICERS arrested him on four separate occasions in less than one-hundred and twenty (120) days.

8. Plaintiffs submit that they were targeted for repeated pretextual arrests by Defendants in order to chill and deter them from First Amendment protected expression.

II. JURISDICTION

9. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331, 1343(a)(3) and (a)(4) and the aforementioned statutory and constitutional provisions.

10. Plaintiffs further invokes this Court's supplemental jurisdiction, pursuant to 28 USC. § 1367, over any and all State law claims and causes of action.

III. VENUE

11. Venue is proper for the United States District Court for the Southern District of New York, pursuant to 28 U.S.C. § 1391(b) because the claims arose in this district.

IV. JURY DEMAND

12. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38(b).

V. THE PARTIES

13. Plaintiff LORENZO SERNA is a resident of the State of North Dakota, City of Grand Forks, and the County of Grand Forks.

14. Plaintiff SEAN VINCENT is a resident of the State of North Carolina, City of Charlotte, and the County of Mecklenburg.

15. Defendant THE CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

16. Defendant THE CITY OF NEW YORK maintains the New York City Police Department ("NYPD"), a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, City of New York. Defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

17. That at all times hereinafter mentioned, Defendant POLICE DEPUTY INSPECTOR EDWARD WINSKI, 14th Precinct, is and was an employee and agent of the New York City Police Department ("NYPD"). On the date of the incidents referenced herein, he was assigned to the 1st Precinct. Deputy Inspector Winski is being sued in his official and individual capacity.

18. That at all times hereinafter mentioned, Defendant POLICE OFFICER LISA WARING was a duly sworn police officer of the NYPD and was acting under the supervision of said department and according to her official duties.

19. That at all times hereinafter mentioned, Defendant POLICE OFFICER JOHN MCNAMARA was a duly sworn police officer of the NYPD and was acting under the supervision of said department and according to her official duties.

20. That at all times hereinafter mentioned, Defendant POLICE OFFICER EDWARD BLANCO was a duly sworn police officer of the NYPD and was acting under the supervision of said department and according to his official duties.

21. That at all times hereinafter mentioned, Defendant POLICE OFFICER VERNELLY was a duly sworn police officer of the NYPD and was acting under the supervision of said department and according to his official duties.

22. That at all times hereinafter mentioned, Defendant POLICE OFFICER WILLIAM CURLEY was a duly sworn police officer of the NYPD and was acting under the supervision of said department and according to his official duties.

23. That at all times hereinafter mentioned, Defendant POLICE OFFICER WILLIAM GRODNICK was a duly sworn police officer of the NYPD and was acting under the supervision of said department and according to his official duties.

24. That at all times hereinafter mentioned, Defendant POLICE OFFICER THOMAS MANNING a duly sworn police officer of the NYPD and was acting under the supervision of said department and according to his official duties.

25. That at all times hereinafter mentioned, Defendant POLICE OFFICER CARBAJAL was a duly sworn police officer of the NYPD and was acting under the supervision of said department and according to his official duties.

26. That at all times hereinafter mentioned, Defendant POLICE OFFICER PAUL RERES was a duly sworn police officer of the NYPD and was acting under the supervision of said department and according to his official duties.

27. That at That at all times hereinafter mentioned, Defendant POLICE CAPTAIN THOMAS TRAYNOR was a duly sworn supervisory police officer of the NYPD and was acting under the supervision of said department and according to his official duties.

28. That at all times relevant herein, Defendant (FORMER) MAYOR MICHAEL R. BLOOMBERG was the Mayor of the City of New York City and the chief policymaker for the Defendant THE CITY OF NEW YORK and its department and agencies, including the New York City Police Department.

29. Defendant (FORMER) MAYOR MICHAEL R. BLOOMBERG has approved, condoned, and ratified the unconstitutional conduct challenged herein.

30. That at all times relevant herein, Defendant (FORMER) NEW YORK CITY POLICE COMMISSIONER RAYMOND W. KELLY was the Commissioner of the New York City Police Department, which is an agency of the Defendant THE CITY OF NEW YORK. At all times relevant herein, Defendant (FORMER) NEW YORK

CITY POLICE COMMISSIONER RAYMOND W. KELLY was a policymaker for the Defendant THE CITY OF NEW YORK and the New York City Police Department.

31. Defendant (FORMER) NEW YORK CITY POLICE COMMISSIONER RAYMOND W. KELLY has approved, condoned and ratified the unconstitutional conduct challenged herein.

32. That at all times hereinafter mentioned, the Defendant POLICE OFFICERS "JOHN DOES 1-10", whose identities are presently unknown to Plaintiff, and were at all times relevant herein officers, employees and/or agents of the NYPD.

33. That at all times hereinafter mentioned, the Defendant POLICE OFFICERS "RICHARD ROES 1-10", whose identities are presently unknown to Plaintiff, and were at all times relevant herein supervising officers, employees and/or agents of the NYPD.

34. That at all times relevant to this action, the Defendant POLICE OFFICERS DEPUTY INSPECTOR EDWARD WINSKI, Defendant NEW YORK CITY POLICE CAPTAIN THOMAS TRAYNOR, Defendant NEW YORK CITY POLICE OFFICER LISA WARING, Defendant NEW YORK CITY POLICE JOHN MCNAMARA, Defendant NEW YORK CITY POLICE OFFICER EDWARD BLANCO, Defendant NEW YORK CITY POLICE OFFICER VERNELLY, Defendant NEW YORK CITY POLICE OFFICER WILLIAM CURLEY, Defendant NEW YORK CITY POLICE OFFICER WILLIAM GRODNICK, Defendant NEW YORK CITY POLICE OFFICER THOMAS MANNING, Defendant NEW YORK CITY POLICE OFFICER CARBAJAL, Defendant NEW YORK CITY POLICE OFFICER PAUL RERES, Defendants NEW YORK CITY POLICE OFFICERS "JOHN DOES 1-10", Defendants NEW YORK CITY SUPERVISING POLICE OFFICERS "RICHARD ROES 1-10", Defendant (FORMER) MAYOR MICHAEL R. BLOOMBERG, and Defendant (FORMER) NEW YORK CITY POLICE COMMISSIONER RAYMOND W. KELLY either personally or through their employees, were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all relevant times, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

35. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with all of the actual and/or apparent authority attendant thereto.

VI. FACTS COMMON TO ALL CLAIMS

36. Occupy Wall Street is a popular political movement that seeks, among other things, to bring greater fairness to the way in which power and resources are shared among citizens of the United States.

37. Occupy Wall Street consists of a large number of people nationwide who share a common consensus that American society is structured in a way that unfairly benefits the rich and powerful at the expense of ordinary people.

38. Those involved with Occupy Wall Street share the belief that change is possible through peaceful protest.

39. The Occupy Wall Street movement began with planning meetings through the summer of 2011, with the use of social media to spread the word about informational meetings leading up to September 17, 2011.

40. The Occupy Wall Street movement began to take action on September 17, 2011, by beginning a protest-occupation of Zuccotti Park, located in New York City's Wall Street financial district. Occupy Wall Street-related protests sprang up in many other cities throughout the United States, and the world. A group of protestors remained at that location until November 15, 2011 (the "Occupation"), when they were forcibly ejected during a midnight police raid, accompanied by mass arrests of protestors and journalists.

PLAINTIFF LORENZO SERNA'S PRECURSOR ARREST

41. On or about September 1, 2011, a few individuals including Plaintiff LORENZO SERNA came together in front of Federal Hall, across from the New York Stock Exchange.

42. These individuals had assembled as a "warm-up" event for Occupy Wall Street.

43. After a time, a police officer ordered the peaceful assembly to disperse, despite the absence of cause for such an order.

44. Plaintiff LORENZO SERNA declined this illegal order and was arrested.

45. The charges from this incident were dismissed for legal insufficiency on November 10, 2011.

46. However, on information and belief, this incident would mark Plaintiff LORENZO SERNA to police as a high-value target for police harassment of Occupy Wall Street.

PLAINTIFF SEAN VINCENT IS TARGETTED AND ASSAULTED BY POLICE

47. Plaintiff SEAN VINCENT, known to many as "Hero," was another such target for police harassment.

48. An articulate and personable young man, Plaintiff SEAN VINCENT gave interviews to media regarding Occupy Wall Street, and led notables such as Russell Simmons on tours of Occupy Wall Street's Zuccotti Park encampment.

49. On the afternoon of Saturday, September 24th, 2011, Plaintiff SEAN VINCENT was a participant in a march affiliated with the Occupy Wall Street movement.

50. Throughout, Plaintiff SEAN VINCENT assisted older marchers to stay with the march and monitored interactions between police and protesters.

51. While isolated arrests occurred at points along the march in question, the police and other authorities present did not attempt to stop the march.

52. No announcement was made by police or other authorities that the march was illegal or otherwise forbidden.

53. Police were present with the march for substantially all of its progress.

54. As the march proceeded, an NYPD officer knocked to the ground an unapprehended female.

55. Plaintiff SEAN VINCENT walked over to help this individual to her feet.

56. A Defendant "JOHN DOE" POLICE OFFICER pushed Plaintiff SEAN VINCENT and then lunged at Plaintiff SEAN VINCENT with his hands in the air and began to swing his fists at Plaintiff.

57. Plaintiff SEAN VINCENT backpedaled desperately, seeking to avoid being struck without fighting back.

58. Plaintiff SEAN VINCENT fell over a police barricade.

59. Numerous Defendant "JOHN DOE" POLICE OFFICERS then seized and tackled Plaintiff SEAN VINCENT, and began to hit Plaintiff SEAN VINCENT with their fists, feet and batons in the absence of any cause for such applications of force.

60. Defendant "JOHN DOE" POLICE OFFICERS were shouting "STOP RESISTING" as they beat Plaintiff SEAN VINCENT, even though he was not resisting.

61. Some or all of the Defendant "JOHN DOE" POLICE OFFICERS were laughing as they shouted "STOP RESISTING," indicating, on information and belief, that they were doing so merely as a pretext to justify their use of force against Plaintiff SEAN VINCENT.

62. Plaintiff SEAN VINCENT was carried away by the Defendant "JOHN DOE" POLICE OFFICERS and charged with one count of harassment (P.L. 240.26), resisting arrest (P.L. 205.30), and attempted assault (P.L. 110-120.00).

63. Plaintiff SEAN VINCENT was held overnight and spent more than twenty-four (24) hours incarcerated before he was arraigned and pled not guilty to these charges.

64. Plaintiff SEAN VINCENT was released on his own recognizance.

65. Defendant Police Officer EDWARD BLANCO effectuated the arrest of Plaintiff SEAN VINCENT.

66. Defendant Police Officer EDWARD BLANCO falsely swore in a criminal complaint that Plaintiff SEAN VINCENT struck Defendant BLANCO in the head.

Further, Defendant BLANCO falsely swore in a complaint that “when he was placing the [Plaintiff SEAN VINCENT] under arrest... defendant flailed defendant’[s] arms and kicked defendant’s legs, and refused to be placed in handcuffs.”

67. Video of this incident refutes Defendant BLANCO’s allegations.

68. Video of this incident indicates that there was no probable cause to arrest Plaintiff SEAN VINCENT.

**PLAINTIFFS ARE ARRESTED FOR FOLLOWING POLICE ONTO THE
BROOKLYN BRIDGE**

69. On October 1, 2011, Plaintiffs SEAN VINCENT and LORENZO SERNA were present in lower Manhattan as part of a march over the Brooklyn Bridge.

70. Defendant POLICE OFFICER RICHARD ROE 10/1/11 INCIDENT COMMANDER and the member of the NYPD who was the highest uniformed ranking police supervisor assuming command.

71. As the Incident Commander of the Occupy Wall Street event on and around the Brooklyn Bridge on October 1, 2011, Defendant POLICE OFFICER RICHARD ROE 10/1/11 INCIDENT COMMANDER was responsible for the overall management of the policing activities concerning the event.

72. As the Incident Commander of the Occupy Wall Street event on and around the Brooklyn Bridge on October 1, 2011, Defendant POLICE OFFICER RICHARD ROE 10/1/11 INCIDENT COMMANDER was responsible for the command, control, and coordination of all incident operations.

73. The demonstration proceeded towards the Manhattan entrance to the Brooklyn Bridge.

74. Some members of the NYPD instructed the demonstration to use the pedestrian walkway.

75. However, at the entrance to the roadway to the Brooklyn Bridge, from the Manhattan side, the demonstration had come to a stop and members of the NYPD were standing approximately twenty (20) or more feet in front of the demonstration.

76. Members of the NYPD turned around and began to walk on the roadway towards Brooklyn from the Manhattan roadway entrance.

77. Thereafter, the demonstrators followed behind the police into the roadway and onto the Brooklyn Bridge’s pedestrian roadway.

78. However, the police began to direct another part of the group to cross the bridge by entering the eastbound automotive traffic lanes.

79. Plaintiffs LORENZO SERNA and SEAN VINCENT followed this group, under police direction, onto the Brooklyn Bridge’s eastbound traffic lanes.

80. Both Plaintiffs LORENZO SERNA and SEAN VINCENT walked in close proximity of NYPD officers, who did not provide any instruction that the Plaintiffs should not proceed.

81. Plaintiffs LORENZO SERNA and SEAN VINCENT, at all times, and to the degree that the Defendant POLICE OFFICERS' directives were audible, complied with those directives.

82. When the Plaintiffs and the group had been led by police approximately half-way across the span, the police ordered the demonstrators to stop.

83. The demonstrators, including the Plaintiffs, complied.

84. The Police then informed those who were on the span that they would be arrested.

85. Defendant POLICE OFFICER CARBAJAL (#945551) arrested Plaintiff LORENZO SERNA at or around 5:00pm.

86. Defendant POLICE OFFICER VERNELLY (#0136) arrested Plaintiff SEAN VINCENT at or around 5:00pm.

87. Defendant POLICE OFFICER CARBAJAL (#945551) placed Plaintiff LORENZO SERNA onto a bus with other arrestees and held Plaintiff LORENZO SERNA there for approximately forty (40) minutes.

88. Defendant POLICE OFFICERS VERNELLY (#0136) placed Plaintiff SEAN VINCENT onto a bus with other arrestees and held Plaintiff SEAN VINCENT there for approximately forty (40) minutes.

89. The Defendant POLICE OFFICERS transported Plaintiffs LORENZO SERNA and SEAN VINCENT to two separate NYPD precincts, over a period of several hours.

90. Defendant POLICE OFFICER CARBAJAL (#945551) charged Plaintiff LORENZO SERNA with disorderly conduct (P.L. 240.20(5)) and a traffic law violation (TR 4012(0)(1)(1)).

91. The Defendant POLICE OFFICERS VERNELLY (#0136) charged Plaintiff SEAN VINCENT with disorderly conduct (P.L. 240.20(5)) and a traffic law violation (TR 4012(0)(1)(1)).

92. Plaintiffs LORENZO SERNA and SEAN VINCENT did not commit any violation or crime.

93. The Defendant POLICE OFFICERS did not release Plaintiffs from police custody until approximately 5:00 am the next day, October 2, 2011.

94. All of the persons arrested on the Brooklyn Bridge on October 1, 2011 had been led onto the Brooklyn Bridge roadway by New York City Police officers, who then proceeded to arrest them without lawful basis.

95. The particular arrests of the Plaintiffs were approved by Defendant POLICE OFFICER RICHARD ROE 10/1/11 INCIDENT COMMANDER.

96. On information and belief, Defendant POLICE OFFICER RICHARD ROE 10/1/11 INCIDENT COMMANDER commanded police officers to lead the Plaintiffs and others onto the bridge, and then to arrest them for following the police.

97. As Defendant POLICE OFFICER RICHARD ROE 10/1/11 INCIDENT COMMANDER was the ranking police supervisor on the scene, his commands and approvals of arrests made pursuant to said commands constituted policymaking by Defendant CITY OF NEW YORK.

98. Plaintiffs were each forced to appear before the Court on multiple occasions to answer the baseless charges set forth in the process issued to them as a result of the October 1, 2011 incident.

99. All charges against Plaintiff SERNA stemming from the October 1, 2011 incident were dismissed on motion of the District Attorney on March 5, 2012.

100. All charges against Plaintiff VINCENT stemming from the October 1, 2011 incident were dismissed on October 10, 2012.

PLAINTIFF SEAN VINCENT IS ARRESTED WHILE ASSISTING POLICE ON A MARCH

101. On October 15, 2011, Plaintiff SEAN VINCENT was participating in an Occupy Wall Street march from Washington Square to Times Square.

102. The October 15, 2011 march was escorted at all times by police.

103. At some point, the march was split into two groups, walking on the sidewalks on opposite sides of Sixth Avenue.

104. Plaintiff SEAN VINCENT served as a liaison between marchers and police, conveying police directions to marchers and coordinating the split groups to keep them together.

105. After a time, and despite his cooperation throughout the march, a Defendant "JOHN DOE" POLICE OFFICER and DEFENDANT POLICE OFFICER WILLIAM CURLEY seized Plaintiff SEAN VINCENT without apparent lawful reason, and arrested him.

106. DEFENANT POLICE OFFICER WILLIAM CURLEY falsely stated in a criminal complaint that he observed SEAN VINCENT attempt to enter the street repeatedly in violation of a lawful order to stay out of the street, and that this somehow caused pedestrians to walk in the street.

107. Plaintiff SEAN VINCENT was held for a period of hours thereafter and falsely charged with disorderly conduct, in the absence of lawful cause.

PLAINTIFF SEAN VINCENT IS SINGLED OUT AND ARRESTED ON ANOTHER MARCH

108. Thereafter, on October 26, 2011, Plaintiff SEAN VINCENT was participating in another Occupy Wall Street march.

109. Police issued no orders for the march to disperse.

110. At some point, the Police seemed to split the march into two groups, and issued orders for the marchers to stay on the sidewalk.

111. Plaintiff SEAN VINCENT complied with this order and stayed on the sidewalk.

112. For no apparent lawful reason, Plaintiff SEAN VINCENT, while standing on the sidewalk, was singled out and seized and arrested by Defendant "JOHN DOE" POLICE OFFICERS, DEFENDANT POLICE OFFICER JOHN MACNAMARA and DEFENDANT POLICE OFFICER LISA WARING.

113. A bystander commented in a video taken in moments after Plaintiff SEAN VINCENT's arrest, in sum and substance, that Plaintiff SEAN VINCENT was arrested because the police "perceive him to be a leader. He did nothing wrong, they just came onto the sidewalk and just grabbed him."

**PLAINTIFF SEAN VINCENT IS FALSELY ARRESTED DURING A
FALSE BOMB SCARE**

114. Thereafter, in Zuccotti Park on the morning of November 8, 2011, Plaintiff SEAN VINCENT was told by police that he had to leave Zuccotti Park due to an alleged bomb threat.

115. On information and belief, this alleged bomb threat was not real, since police did not evacuate any surrounding buildings or take other actions that might reasonably result from an actual bomb threat; police were purely using the alleged bomb threat to attempt to clear a portion or all of Zuccotti Park of Occupy Wall Street protesters.

116. Plaintiff SEAN VINCENT began to comply with this request when he was abruptly grabbed, detained and arrested by Defendant POLICE OFFICER WILLIAM GRODNICK.

117. Defendant POLICE OFFICER WILLIAM GRODNICK filed a false complaint against Plaintiff SEAN VINCENT alleging that Plaintiff VINCENT refused to comply with an order to move from the location.

118. Within the complaint filed against SEAN VINCENT, Defendant POLICE OFFICER WILLIAM GRODNICK swore that he was informed by Defendant POLICE CAPTAIN THOMAS TRAYNOR, that Defendant POLICE CAPTAIN THOMAS TRAYNOR asked SEAN VINCENT four times to vacate the location so the suspicious package investigation could commence, and that SEAN VINCENT refused to leave the location thereby interfering with the police investigation.

119. These allegations sworn to by Defendant POLICE OFFICER WILLIAM GRODNICK upon information by Defendant POLICE CAPTAIN THOMAS TRAYNOR were false.

120. On or about January 30, 2013, Defendant POLICE CAPTAIN THOMAS TRAYNOR signed a supporting deposition swearing to the truth of the allegations in the criminal complaint brought against SEAN VINCENT.

121. Upon information and belief, Zuccotti Park was not cleared, and no other arrests were effectuated for failure to obey an order to vacate the park.

**PLAINTIFF SEAN VINCENT IS FALSELY ARRESTED FOR PATTING
A PROTESTER ON THE SHOULDER**

122. Once more, on November 27, 2011, Plaintiff SEAN VINCENT was present in or near Zuccotti Park as Defendant DEPUTY INSPECTOR EDWARD WINSKI had detained another individual.

123. Upon information and belief, an individual was being detained by DEPUTY INSPECTOR EDWARD WINSKI on the sidewalk between Zuccotti Park and Broadway.

124. Plaintiff SEAN VINCENT walked by the individual under detention, and in a sign of camaraderie, gave this individual a single pat on the shoulder as he passed.

125. Thereafter, the detained individual asked Plaintiff SEAN VINCENT to let his wife know, who was in Zuccotti Park, that the detained individual was being arrested.

126. Plaintiff SEAN VINCENT stood approximately ten feet away, with three to four NYPD officers between himself and the detained individual, and proceeded to ask the name of the detained individual's wife.

127. Defendant POLICE OFFICER JOSE CABRERA then began to grab Plaintiff SEAN VINCENT.

128. Defendant POLICE OFFICER JOSE CABRERA then stood less than one inch from Plaintiff SEAN VINCENT ostensibly taking up all of Plaintiff SEAN VINCENT's personal space.

129. Plaintiff SEAN VINCENT asked Defendant POLICE OFFICER JOSE CABRERA, in sum and substance, "why are you getting in my face?"

130. Defendant POLICE OFFICER JOSE CABRERA did not respond verbally, but he, along with other officers then seized, detained and arrested Plaintiff SEAN VINCENT without lawful cause.

131. Defendant POLICE OFFICER THOMAS MANNING swore out a false complaint against SEAN VINCENT whereby Defendant POLICE OFFICER THOMAS MANNING stated that he was informed by Defendant POLICE OFFICER JOSE CABRERA that SEAN VINCENT repeatedly stepped in between the CABRERA and the detained individual, stating in sum and substance, "WHY ARE YOU ARRESTING HIM. THIS IS UNCONSTITUTIONAL."

132. Defendant POLICE OFFICER JOSE CABRERA signed falsely swore in a complaint that Plaintiff SEAN VINCENT repeatedly stepped between the arresting officer and the other arrested individual.

133. On or about December 8, 2011, Defendant POLICE OFFICER JOSE CABRERA signed a supporting deposition swearing to the false allegations contained in the criminal complaint.

134. Video of the November 27, 2011 incident contradicts Defendant POLICE OFFICER JOSE CABRERA's allegations against Plaintiff SEAN VINCENT.

135. Thereafter, the New York County District Attorney moved to consolidate and did consolidate several of Plaintiff SEAN VINCENT's prosecutions, over objections from defense counsel that no fair trial could be had on such a consolidated docket.

136. On or about April 4, 2013, Plaintiff SEAN VINCENT, under duress of multiple open cases that would all be tried together in front of one jury, and unable to afford continuing trips back to New York City to defend the false charges against him, pled guilty to one count of disorderly conduct and was sentenced to time served in complete satisfaction of the multiple dockets against him.

137. Upon information and belief, Plaintiff SEAN VINCENT's arrest of November 27, 2011 was dismissed before a plea was taken, in part due to the video evidence.

**PLAINTIFF LORENZO SERNA IS PICKED OUT AND TARGETTED
FOR HARASSMENT AND ARREST BY DEFENDANT WINSKI**

138. On December 12, 2011, Plaintiff LORENZO SERNA was present at an Occupy Wall Street march to the Winter Garden in lower Manhattan.

139. Early in the march, Plaintiff SERNA asked a question to Defendant DEPUTY INSPECTOR EDWARD WINSKI without identifying himself.

140. Thereafter, as the march progressed, Defendant DEPUTY INSPECTOR EDWARD WINSKI could be heard addressing announcements over a bullhorn to Plaintiff LORENZO SERNA specifically, including, in sum and substance, "LORENZO KEEP MOVING OR YOU ARE GOING TO BE ARRESTED."

141. Thereafter, at the Winter Garden, police proceeded to arrest certain protesters causing a disturbance on the lobby level of the Winter Garden.

142. Plaintiff LORENZO SERNA had been video-recording the entire event including the arrests from the mezzanine level of the Winter Garden.

143. As a live-streaming journalist, Plaintiff LORENZO SERNA had to move down to the ground level to be able to provide those watching the live-stream, with a better image of what was occurring.

144. Plaintiff LORENZO SERNA walked down an escalator and approached an officer at the bottom of the escalator.

145. Plaintiff LORENZO SERNA asked where he could stand to continue taking video and providing live-stream.

146. The officer indicated a specific spot for Plaintiff LORENZO SERNA to stand and continue to live-stream.

147. Plaintiff LORENZO SERNA stood in that space until he was located by Defendant DEPUTY INSPECTOR EDWARD WINSKI.

148. Defendant DEPUTY INSPECTOR WINSKI then grabbed Plaintiff LORENZO SERNA by the shoulder and stated, in sum and substance, “that’s the one we want. Arrest him.”

149. Defendant “JOHN DOE” POLICE OFFICERS and Defendant POLICE OFFICER PAUL RERES then proceeded to arrest Plaintiff LORENZO SERNA in the absence of lawful cause.

150. Plaintiff LORENZO SERNA was charged with one count of criminal trespass in the third degree (PL 140.10(a)).

151. Plaintiff LORENZO SERNA was held for approximately twenty-four (24) hours before being released on his own recognizance.

152. On or about July 31, 2012, these charges were dismissed.

153. After the December 12, 2011 arrest, Plaintiff LORENZO SERNA was regularly addressed by name by NYPD Officers policing Occupy Wall Street events, and threatened with arrest by name on multiple occasions.

154. On information and belief, Defendants undertook this conduct to intimidate and deter Plaintiff LORENZO SERNA from participation in public protest in New York.

155. Defendants were successful in doing so: in February of 2012, Plaintiff LORENZO SERNA moved back home to North Dakota.

156. Plaintiff LORENZO SERNA was arrested on five dockets on four different dates related to OCCUPY WALL STREET.

157. Every one of these dockets resulted in a dismissal.

158. Plaintiffs respectfully submit that they were targeted for harassment and arrest by Defendants in order to deter and chill their free speech activities, and to deter and chill others who looked to them as examples and encouragements to engage in non-violent protest and document police actions, respectively.

PARTICIPATION IN OCCUPY WALL STREET WAS EXPRESSIVE SPEECH ACTIVITY

159. Part of the responsibility of the United States Department of Homeland Security (“DHS”) is to ensure that individual rights of privacy and rights guaranteed by the United States Constitution are not trampled upon in the name of domestic security.

160. Two departments within DHS are tasked with these obligations.

161. The DHS division known as PRIV, on information and belief an acronym for “privacy,” is obligated to ensure that the privacy rights of citizens are protected.

162. The DHS division known as CRCL, on information and belief an acronym for “civil rights civil liberties,” is obligated to ensure that the civil rights of citizens are protected.